

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Diana Murray	Team: Team # 2	CCRB Case #: 201300605	☒ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☒ O.L.	☒ Injury
Incident Date(s) Sunday, 01/13/2013 3:17 AM, Friday, 03/01/2013 12:00 AM	Location of Incident: § 87(2)(b)	18 Mo. SOL 7/13/2014	Precinct: 77		
Date/Time CV Reported Sun, 01/13/2013 3:46 AM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Fri, 01/25/2013 3:20 PM		

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Witness(es)	Home Address
§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. POM Michael Mcmanus	11200	951994	PBBN
2. SGT Juan Moreno	03602	935351	PBBN
3. Officers			

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Eugene Keller	11125	951863	PBBN
2. POM Brian Kehoe	20767	951862	PBBN

Officer(s)	Allegation	Investigator Recommendation
A . SGT Juan Moreno	Abuse: Sgt. Juan Moreno damaged § 87(2)(b) s property.	A . Unfounded
B . Officers	Force: Officers used physical force against § 87(2)(b)	B . Officer(s) Unidentified
C . Officers	Off. Language: Officers made remarks to § 87(2)(b) based upon his perceived sexual orientation of § 87(2)(b)	C . Officer(s) Unidentified
D . POM Michael Mcmanus	Off. Language: PO Michael Mcmanus made remarks to § 87(2)(b) based upon his perceived sexual orientation of § 87(2)(b)	D . Unsubstantiated
E . POM Michael Mcmanus	Force: PO Michael Mcmanus used physical force against § 87(2)(b)	E . Unsubstantiated
F . POM Michael Mcmanus	Discourtesy: PO Michael Mcmanus spoke discourteously to § 87(2)(b)	F . Unsubstantiated
G . SGT Juan Moreno	Abuse: Sgt. Juan Moreno authorized the entry into § 87(2)(b) in Brooklyn.	G . Exonerated

Case Summary

On January 13, 2013, Sgt. Juan Moreno reported this incident to Internal Affairs Bureau (IAB) generating IAB log 2013-1828 on behalf of § 87(2)(b) who was injured in police custody. On January 17, 2013, Det. Ruzzutti filed a duplicate of this complaint under IAB log 2013-2397, in response to a media article in which § 87(2)(b) was claiming force and discourteous language (Enc. 5a – 5d).

§ 87(2)(g)

On January 13, 2013, at approximately 3:17 a.m., officers responded to § 87(2)(b) in Brooklyn. The following allegations resulted:

- **Allegation A – Abuse of Authority: Sgt. Juan Moreno damaged § 87(2)(b)'s property.**

§ 87(2)(g)

It is therefore recommended that **Allegation A** be closed as **unfounded**.

- **Allegation B – Force: Officers used physical force against § 87(2)(b)**
- **Allegation C – Offensive Language: Officers made remarks to § 87(2)(b) based upon the perceived sexual orientation of § 87(2)(b)**

§ 87(2)(g)

It is therefore recommended that **Allegations B and C** be closed as **officers unidentified**.

- **Allegation D – Offensive Language: PO Michael McManus made remarks to § 87(2)(b) based upon the perceived sexual orientation of § 87(2)(b)**
- **Allegation E – Force: PO Michael McManus used physical force against § 87(2)(b)**
- **Allegation F – Discourtesy: PO Michael McManus spoke discourteously to § 87(2)(b)**

§ 87(2)(g)

It is therefore recommended that **Allegations D, E and F** be closed as **unsubstantiated**.

- **Allegation G – Abuse of Authority: Sgt. Juan Moreno authorized the entry into § 87(2)(b) in Brooklyn.**

§ 87(2)(g)

It is therefore recommended that **Allegation G** be closed as **exonerated**.

Results of Investigation

Civilian Statements

Complainant/Victim: § 87(2)(b)

- § 87(2)(b) was § 87(2)(b) at the time of this incident. He is a § 87(2)(b) black male with black hair and brown eyes.

NYPD Arrest Photo and Property Damage Photos

The arrest photo of § 87(2)(b) does not depict visible physical injuries (Enc. 9a). During his CCRB statement, § 87(2)(b) stated that his arrest photo was taken after he received stitches. § 87(2)(b) and his attorney provided the CCRB with two photos of a damaged stone saddle belonging to the front door of § 87(2)(b) (Enc. 8i – 8j).

Video Footage

§ 87(2)(b) provided surveillance video footage from his front stoop and from the interior of his apartment. He also provided a cell phone video of him being walked to a marked RMP in handcuffs (Enc. 7a – 7b).

The video footage of the front stoop, prior to the officers entering, did not depict any allegations mentioned in § 87(2)(b)'s CCRB statement, as Sgt. Moreno turned the camera away from the stoop prior to § 87(2)(b) opening the front door. In regards to the property damage allegation, approximately 1:28 seconds into the video, Sgt. Moreno turns the camera away from the stoop; however, the video continues to record the wall for another 35 seconds (IA #87). In an 11 minute video, which captures the interior of the recording studio inside of the apartment, a well-lit television screen can be seen in the left corner of the video frame. On the television, an image of the wall, the same image captured from the first camera after it was rotated by Sgt. Moreno, is seen continually flickering during the course of the 11 minute video. The footage does not depict an officer searching any portion of the apartment or tampering with property inside of the apartment.

The cell phone video with audio provided by § 87(2)(b) depicts him being walked to the RMP by an unidentified officer who is not PO McManus. While he is being walked to the RMP, no discourteous language, including “fucking asshole” can be heard on the recording.

Statements to Medical Personnel

On § 87(2)(b) § 87(2)(b) informed Emergency Medical Technicians (EMTs) that the police beat him up. This same day, § 87(2)(b) informed § 87(2)(b) personnel that he was hit in the face with the police's fists.

Between § 87(2)(b), and § 87(2)(b), § 87(2)(b) visited § 87(2)(b) and provided a detailed statement about this incident § 87(2)(g) § 87(2)(b), in that he mentioned that officers hit him in the back and gave him uppercuts to the face. He also noted that an officer called him a “fucking fag.” § 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

CCRB Statement

§ 87(2)(b) was interviewed at his attorney's office, § 87(2)(b), in Manhattan, on February 20, 2013 (Enc. 8a – 8d). On July 15, 2013, § 87(2)(b) provided clarifying details of this incident via e-mail (Enc. 30j – 30k).

§ 87(2)(b) hosted a party at his apartment, located at § 87(2)(b) § 87(2)(b) in Brooklyn, beginning at 11 p.m. on January 12, 2013, and lasting until this incident began. § 87(2)(b) lives in a two-story multi-dwelling building; however, the first floor is currently vacant. § 87(2)(b)'s apartment is a railroad style apartment with eight rooms that he and his roommates, § 87(2)(b) § 87(2)(b), and § 87(2)(b) also use as a recording studio and party promoting business.

§ 87(2)(b) was hosting a party for a member of the gay community who was paying him to do so; therefore he did not know the identities of the individuals at his party. Approximately 60 to 80 people attended the party. At the time of this incident, § 87(2)(b) was not under the influence of drugs or alcohol.

At approximately 2:45 a.m., § 87(2)(b) was viewing his exterior surveillance camera and noticed that two uniformed officers had arrived in his front yard and were addressing approximately five partygoers that were outside smoking. § 87(2)(b) went outside and spoke to the officers, who asked him to turn down the volume of the party. § 87(2)(b) returned to the second floor and turned down the music. § 87(2)(b) believed that the officers left the location in the RMP.

Five minutes later, § 87(2)(b) observed from his surveillance cameras that additional officers had arrived at his residence and were standing on his front stoop. As § 87(2)(b) was watching the

surveillance cameras, he observed Sgt. Juan Moreno, who was identified via investigation and described as a 6'0" tall Hispanic sergeant in his mid to late 30s, climb the stoop and turn the surveillance camera away from the front door so that it was facing the wall. As a result of Sgt. Moreno moving the camera, the mount was broken, causing the camera to cut out with an extended period of poor system performance following. Sgt. Moreno was standing on the stoop with two to three other uniformed male officers, one of whom was pounding on the door with his baton. § 87(2)(b) turned the music off and asked all partygoers to have a seat. § 87(2)(b) denied forcing any partygoers to stay against their will; however, he requested that everyone show their hands as not to provoke the officers.

§ 87(2)(b) went downstairs to address the officers. § 87(2)(b) did not turn the light off in the vestibule and noted that the light in the vestibule has been non-operational since he moved in. He observed that the officers were banging so hard on the door that the stone threshold to the front entryway had been smashed. § 87(2)(b) opened the door and asked why the officers had arrived. Immediately upon opening the door, an officer placed his foot in the jamb of the door and pushed the door open further. § 87(2)(b) did not attempt to close the door on an officer, push an officer, or make any type of forward advancement toward an officer. Immediately after opening the door, approximately four to six officers rushed into the vestibule area toward § 87(2)(b).

An officer who § 87(2)(b) could not describe struck him in the face two times with a closed fist in quick succession. An officer who § 87(2)(b) could not see grabbed his right arm while a different officer grabbed his left arm, manipulating him into a shoulder lock. As a result, § 87(2)(b) was propped up into a standing position with his upper-torso bent over the floor in an upside down "L" shape. § 87(2)(b) did not move his arms away from the officers in attempt to evade being handcuffed. The size of the vestibule would not accommodate a person of § 87(2)(b)'s size to lie onto the floor, and he was uncertain whether officers were attempting to force him onto the floor.

§ 87(2)(b) was bent over for the duration of this incident and was unable to see which officers were striking him. He felt punches connect to the back of his neck and head and his back. Some of the strikes to his back felt sharper and harder, as if he was being hit with a blunt object. § 87(2)(b) never observed the object, had there been one, that caused the harder blows. § 87(2)(b) felt strikes and punches land on the left side of his face, which ultimately caused a laceration that required nine stitches. In response, § 87(2)(b) would contort his body to reflect the pain of the blow, but he did not try to escape the officer's grasp. § 87(2)(b)'s arms were secured for the duration of the blows and he was not flailing his arms.

As the officers were striking § 87(2)(b) he heard them making statements to the effect of, "Faggot, homo, fuck you." The officers also yelled, "Stop resisting" and § 87(2)(b) would yell back "I am not resisting!" but no other conversation took place.

PO Michael McManus, who was identified via investigation and described as a 6'0" tall, muscular white male in his 30s, put on black gloves. PO McManus then punched § 87(2)(b) in an upper-cut motion to his face. During the blows, § 87(2)(b) was completely restrained by the officers who were holding onto his left and right arms; however, he was not in handcuffs. PO McManus hit § 87(2)(b) approximately ten times in the facial region. At no point during this entire interaction did § 87(2)(b) strike or push an officer. § 87(2)(b) remained on his feet for the duration of this incident.

The rest of the partygoers were on the second floor of the building, and only § 87(2)(b) and the officers were on the first floor. As a result of the force used against him, § 87(2)(b) lost consciousness. As he regained consciousness, § 87(2)(b) was being led into a marked van. PO McManus was walking him to the van and, in doing so, called him a "fucking asshole."

§ 87(2)(b) had an organic substance on his person that is not a narcotic, but a legal substance. He denied possession of ecstasy but was unable to attest as to whether the partygoers were consuming narcotics.

While in police custody, § 87(2)(b) visited § 87(2)(b) § 87(2)(b)

§ 87(2)(b) § 87(2)(b) was charged with § 87(2)(a) 160.50

§ 87(2)(b)

Upon arriving back at his apartment, § 87(2)(b) viewed the surveillance video footage and noted that officers had entered his apartment after he had been transported to the stationhouse.

Single Photo Viewing

Photos of Sgt. Moreno, PO Keller, and PO McManus were presented to § 87(2)(b) after his CCRB statement. He identified Sgt. Moreno as the officer who turned the camera away from the stoop and identified the photo of PO McManus as an officer who was present and likely used force against him, though § 87(2)(b) was unable to articulate how. § 87(2)(b) did not recognize the photo of PO Keller. At the conclusion of the photo viewing, § 87(2)(b) expressed concern that he did not identify PO McManus (Enc. 8e – 8h).

Witness: § 87(2)(b)

- § 87(2)(b) was § 87(2)(b) at the time of this incident. He is a § 87(2)(b) black man with brown hair and brown eyes.

CCRB Statement

§ 87(2)(b) was interviewed at his attorney's office, located at § 87(2)(b), in Manhattan, on April 2, 2013 (Enc. 10a – 10c). § 87(2)(g)

At the time of this incident, § 87(2)(b) was viewing the surveillance tapes and helping to supervise the gay pride party so that nothing got out of hand. After conversing with officers, § 87(2)(b) returned upstairs and told the DJ to turn the music down. The marked RMP containing the initial officers left the location. Seven to fifteen minutes later, three to four uniformed officers arrived on the front stoop of § 87(2)(b). Sgt. Moreno reached up and turned the camera away so that it was not facing the officers. The officers knocked on the door for approximately three minutes before § 87(2)(b) descended the stairs to see what was going on. § 87(2)(b) heard a loud bang and went to the upstairs hallway that overlooks the vestibule.

§ 87(2)(b) had a bird's eye view of the incident from the hallway above the vestibule, which was dark. He initially observed three officers in the vestibule – with one officer on each side of § 87(2)(b) holding him in an “L” shaped position, and one officer behind him. Due to § 87(2)(b)'s vantage point, he could not describe any officers. An officer who § 87(2)(b) could not describe, who appeared to be wearing gloves, and was therefore identified via investigation as PO McManus, stood in front of § 87(2)(b) and punched him several times in the face in an uppercut motion. By the time § 87(2)(b) was handcuffed, approximately four to five officers were in the small vestibule with § 87(2)(b). Two of the officers appeared to be hitting § 87(2)(b) on his back with “long dark shiny objects”, though § 87(2)(b) could not describe the objects any further. He recalled § 87(2)(b) being struck approximately six times with the objects.

As the officers were striking § 87(2)(b) he heard more than one male voice yell, “Fag, homo, fucking faggot, and stop resisting.” PO McManus primarily made the anti-gay statements. § 87(2)(b) did not recall hearing an officer refer to § 87(2)(b) as a “fucking asshole.” § 87(2)(b) was yelling, “Stop, please!” § 87(2)(b) did not see § 87(2)(b) attempt to move his body away from the officers or resist arrest. § 87(2)(b) was not kicking or flailing, and he was unable to shield himself from the blows, as his arms were braced in the “L” position.

§ 87(2)(b) remained at the top of the stairs with approximately six unnamed partygoers, and no individual got closer to the interaction. The officers led § 87(2)(b) out of the vestibule and transported him to the precinct.

While inside of the apartment calming the partygoers, § 87(2)(b) observed officers inside of the apartment. He is uncertain how the officers got inside of the apartment, and whether a partygoer let them in. As the officers were entering, many people were leaving. Officers walked through the entire apartment, all four rooms, the kitchen and the hallways with their flashlights out. He observed an officer shine his flashlight in the trashcan, under a desk, in the corners of the room, and behind the couch.

§ 87(2)(b) provided his identification to Sgt. Juan Moreno, who he described as a 5'8" to 5'9" tall, uniformed Hispanic male officer who appeared "exotically European", based on his mannerisms and appeared to have a slight accent.

After this incident, § 87(2)(b) observed that the door's stone saddle was broken. The stone saddle is one large stone block, which was broken in half. One half was completely shattered while the other half was cracked. § 87(2)(b) did not observe how this was broken, but assumes it is due to the officers banging on it. The wall behind the door has a hole in it due to the door knob striking the wall. Additionally, by turning the front security camera, the officer snapped a wire on the exterior surveillance footage, thus breaking the camera. The camera was fixed shortly before the March 1, 2013, incident.

§ 87(2)(b)'s primary mixing board, which is an electronic used for music recording, began smoking the next day, and § 87(2)(b) suspects that the officers had something to do with the damaged property, but he did not see or hear anything about the officers breaking the mixing board.

Single Photo Viewing

§ 87(2)(b) viewed photos of Sgt. Moreno, PO McManus and PO Keller after his CCRB statement, but was unable to identify any of the officers as being present on the incident date (Enc. 10d – 10g).

NYPD Statements:

Subject Officer: SGT. JUAN MORENO

- Sgt. Moreno was § 87(2)(b) old at the time of this incident. He is a § 87(2)(b) Hispanic man with brown hair and brown eyes.
- Sgt. Moreno worked from 7:05 p.m. on January 12, 2013, to 4 a.m. on January 13, 2013, as a Patrol Borough Brooklyn North Impact Sergeant. He was working with PO Eugene Keller, PO Michael McManus, and PO Brian Kehoe. He was working in uniform and assigned to RMP 8018.

Memo Book

At 3:17 a.m., in front of § 87(2)(b) a male complainant stated that his little brother was inside of the § 87(2)(b) floor apartment and people did not want him to leave the apartment. § 87(2)(b) refused to open the door. Ten minutes later, the defendant opened the door and pushed Sgt. Moreno with both hands. He stated, "Fuck you, fuck you." § 87(2)(b) refused to put his hands behind his back and began to fight with the police. He was arrested for § 87(2)(a) 160.50 (Enc. 15a – 15d).

CCRB Statement

Sgt. Moreno was interviewed at the CCRB on June 4, 2013 (Enc. 16a – 16f).

On January 13, 2013, at 3:17 a.m., PO McManus and Sgt. Moreno were driving northbound on § 87(2)(b) in Brooklyn, when they observed a group of approximately 40 people standing on the sidewalk and in the street in front of § 87(2)(b). The individuals had open containers in their possession and were speaking loudly in a residential neighborhood. Sgt. Moreno and PO McManus exited the vehicle and requested that the party disperse. All members of the party complied except for one male in his 20s, who Sgt. Moreno was unable to recall by name, who refused to leave the location. He informed

Sgt. Moreno that his little brother was on the § 87(2)(b) floor of the building and the tenants would not let him leave.

Sgt. Moreno did not record the names or pedigree information of either the complainant, or his little brother. Sgt. Moreno considered contacting the Emergency Services Unit (ESU), given that a person was being held against their will, but he first went to the stoop with PO McManus to ring the doorbell. The officers rang the bell and knocked on the door for approximately ten minutes. Sgt. Moreno did not kick the door, hit the door with an asp, or observe any officer cause property damage to the door. Upon viewing the photo of the broken stone saddle during his CCRB interview, he stated that he did not observe this property damage first hand.

Sgt. Moreno called for backup and PO Brian Kehoe and PO Eugene Keller arrived within minutes. Three individuals from inside of § 87(2)(b) came down the stairs and stood in the vestibule but did not exit the apartment building. Two of the individuals went back up the stairs after a couple seconds. The third individual, who Sgt. Moreno later identified as § 87(2)(b) remained downstairs in the apartment's vestibule area where he turned off the lights in the hallway so that Sgt. Moreno could not see into the building. § 87(2)(b) stood in the hallway with his hand either near his waist, or in his pocket. Due to the lighting, Sgt. Moreno could not tell whether § 87(2)(b) was reaching for something and it caused him to fear for his safety. Sgt. Moreno called out "Police!" but § 87(2)(b) did not react.

Sgt. Moreno observed a camera mounted on the upper left side of the building, facing the officers who were standing at the front door on the stoop. Sgt. Moreno feared that the people inside "planned to do something" and he would be at a disadvantage because they could see him from the surveillance camera. Sgt. Moreno did not know if they had a gun or a weapon in the house, so he turned the camera away from the building to preserve his safety. In doing so, he was very gentle and moved the camera with an open hand to face the building. He did not slam or swat the camera and did not hear or see a wire snap upon making contact with the camera. After turning the camera away from him, he recalled that the music emanating from inside of the apartment stopped.

Two minutes later, § 87(2)(b) opened front door of the apartment building. Sgt. Moreno, who was the closest to § 87(2)(b) stepped into the threshold of the building, which is a small vestibule area about 10 to 15 feet long by seven to eight feet wide. Sgt. Moreno began to introduce himself and explain the situation about the unidentified male being held in the apartment; however, before Sgt. Moreno could say anything, § 87(2)(b) pushed him backwards with both hands causing him to make contact back-first with a nearby wall. As § 87(2)(b) pushed Sgt. Moreno backward, two officers came around Sgt. Moreno and grabbed § 87(2)(b).

§ 87(2)(b) was making statements to the effect of, "Fuck you, you're not supposed to be here" and put his upper body and hands into a boxing stance. PO McManus and PO Keller ran to either side of § 87(2)(b) and began to wrestle him away from Sgt. Moreno. § 87(2)(b) began swinging his arms and cursing.

The officers all grabbed at § 87(2)(b)'s limbs for approximately three minutes to handcuff him. Sgt. Moreno did not recall each officer's placement in relation to § 87(2)(b)'s body, or how he was situated. PO McManus punched § 87(2)(b) on the right side of his face as § 87(2)(b) continued to flail his arms. When § 87(2)(b) was punched, he was not securely restrained by officers. Sgt. Moreno only observed PO McManus strike § 87(2)(b) one time, and Sgt. Moreno did not personally strike § 87(2)(b) or see any other officer do so. PO McManus strike to § 87(2)(b)'s face was successful in debilitating § 87(2)(b) long enough to fully handcuff him.

Sgt. Moreno carries an expandable baton but did not use it against § 87(2)(b) and did not see any officer use a nightstick, baton, or asp against § 87(2)(b). Sgt. Moreno did not strike § 87(2)(b) with a blunt object and did not see any other officer do so. During the struggle the officers were shouting, "Stop resisting, put your hands behind your back!" Sgt. Moreno did not hear any officer yell, "Faggot,

homo, or fuck you,” and he did not make these statements himself. He did not hear PO McManus call § 87(2)(b) a “fucking asshole.”

The partygoers were at the top of the stairs looking down, but § 87(2)(b) had turned off the lights and the entire vestibule area was dark. § 87(2)(b) was escorted outside to the transport van and Sgt. Moreno stayed inside of the building and ascended the stairs. Sgt. Moreno did not have time to observe whether § 87(2)(b) had injuries.

Sgt. Moreno, PO Kehoe, and officers who Sgt. Moreno does not recall entered the second story apartment. Approximately 100 people were exiting the apartment, so the door was open and no individual appeared to live at the location or protest the officers’ entry. Sgt. Moreno’s intentions upon entering were to the get the partygoers to disperse and investigate the case of the individual being held against his will.

Eventually, Sgt. Moreno encountered a male who identified himself as the person “being in charge” and informed Sgt. Moreno that he could, “go ahead and look around.” Sgt. Moreno was the highest ranking officer at the location and instructed the other officers to disperse the party.

Sgt. Moreno and officers began to sweep the area for an individual who they believed was being held against their will. Sgt. Moreno was not looking for contraband and did not search in any area that a person could not hide, including drawers. He mainly walked among the rooms and gave orders to the civilians to leave the location. He may have checked closets. There were no additional signs of distress, such as an individual being injured, and Sgt. Moreno did not have a name of a person whom he was searching for.

Sgt. Moreno did not recall seeing recording equipment in the apartment. He did not see an officer tamper with a recording switchboard table or damage any music equipment such as a speaker, and he did not do so himself. Back at the stationhouse, Sgt. Moreno observed that § 87(2)(b) had an injury to his lip, though he did not see how he sustained the injury.

Subject Officer: PO MICHAEL MCMANUS

- PO McManus was § 87(2)(b) old at the time of this incident. He is a § 87(2)(b) white man with blonde hair and blue eyes.
- PO McManus worked from 7:30 p.m. on January 12, 2013, to 7:40 p.m. on January 13, 2013. He was initially working as a foot post but at 2 a.m., he was assigned to be Sgt. Juan Moreno’s operator. He was dressed in uniform and assigned to a marked RMP.

Memo Book

At 3 a.m., there was a request for an additional unit at § 87(2)(b). At 3:17 a.m., § 87(2)(b) was placed under arrest for § 87(2)(a) 160.50. § 87(2)(b) had a large party in his home of 150 people or more which caused a disturbance and safety issues. After 20 minutes he finally answered the door and was given a lawful order by Sgt. Moreno. He pushed Sgt. Moreno and began to flee back into his home. At this time he attempted to place him under arrest which he resisted and began fighting us by swinging his arms wildly. I used the minimum amount of force necessary to gain control of him and place him in handcuffs. This task of cuffing the defendant took several officers’ help. At 3:30 a.m., the officers arrived at the 77th Precinct and § 87(2)(b) received medical treatment. At 5 a.m., the marijuana tested positive. At § 87(2)(b), § 87(2)(b) returned from the hospital (Enc. 11a – 11e).

Criminal Complaint Report and OLBS Arrest Report

PO McManus prepared § 87(2)(b) s arrest paperwork (Enc. 12a – 12e). § 87(2)(a) 160.50

Physical force was used to restrain, control or remove
§ 87(2)(b)

CCRB Statement

PO McManus was interviewed at the CCRB on July 12, 2013 (Enc. 13a – 13d). § 87(2)(g)

At the time of this incident, PO McManus and Sgt. Moreno were attempting to disperse the large crowd when one person refused to leave the location. PO McManus confirmed the details of the male who complained that his brother was being held against his will, but was unable to provide additional clarifying information. PO McManus noted that the reason the individual was reportedly not allowed to leave was because the officers were at the location.

Sgt. Moreno did move the camera for safety reasons; however, this did not cause property damage. The officers did not cause any damage to the front door, and upon viewing the photograph of the damaged stone saddle, PO McManus did not recall observing this firsthand. PO McManus confirmed that the light in the vestibule was initially on, but at some point it was turned off.

When § 87(2)(b) opened the door, he and Sgt. Moreno conversed for less than one minute prior to § 87(2)(b) pushing Sgt. Moreno. PO McManus was standing at the bottom of the stoop and could not hear the conversation. Due to PO McManus' vantage point, which was directly behind Sgt. Moreno, he did not actually see § 87(2)(b) put his hands on Sgt. Moreno, but PO McManus did see Sgt. Moreno jolt backward approximately one step. Sgt. Moreno did not make contact with any wall after he was pushed.

PO Kehoe and PO Keller, who had been standing next to Sgt. Moreno, lunged forward to grab § 87(2)(b). All of the officers entered the vestibule and engaged in a physical struggle with § 87(2)(b) in an attempt to handcuff him. Due to the lack of lighting in the vestibule, PO McManus was unable to see what the other officers were doing and what § 87(2)(b) was doing. He attempted to grab § 87(2)(b)'s left arm and bring it behind his back. § 87(2)(b) was flailing his arms and trying to get away. PO McManus observed that officers were holding onto § 87(2)(b)'s right arm and he remained standing. § 87(2)(b) bent his upper torso over his legs in an attempt to shake the officers off of him. No officer was punching § 87(2)(b) in the face at this point.

When § 87(2)(b) continued to resist the officers' attempts to handcuff him, PO McManus used his right fist to strike § 87(2)(b) on the left side of his face, near his cheek, one time. After striking § 87(2)(b) one time, PO McManus' wrist and hand hurt so he then used his elbow to strike § 87(2)(b) on the left side of his rib cage. Neither tactic was successful in gaining § 87(2)(b)'s compliance. The officers were yelling "stop resisting" but § 87(2)(b) did not comply. PO McManus did not see an officer use an asp, baton, nightstick or any blunt object to strike § 87(2)(b) and he did not do so himself. He did not see PO Kehoe, PO Keller or Sgt. Moreno strike § 87(2)(b). No officer made the statements, "Faggot, homo, or fuck you asshole." PO McManus was unable to recall whether he used his black sport gloves at the time of this incident.

§ 87(2)(b) was eventually handcuffed and led out to a transport van. PO McManus rode to the precinct in a separate vehicle. PO McManus noticed that § 87(2)(b) was bleeding from the mouth, but he did not specifically see how § 87(2)(b) sustained his injuries nor could he attest that it was his single punch that caused the injuries.

Witness Officer: PO EUGENE KELLER

- PO Keller was § 87(2)(b) old at the time of this incident. He is a § 87(2)(b) white-Hispanic male officer with brown hair and brown eyes.
- PO Keller worked from 7:30 p.m. on January 12, 2013, to 4:05 a.m. on January 13, 2013. Although he was originally assigned as a Patrol Borough Brooklyn North foot post for Post 54, his assignment was changed during roll call to Patrol in marked van 8556. He was working with PO Kehoe and was dressed in uniform.

Memo Book

At 3 a.m., a request for an additional unit was transmitted by Sgt. Moreno regarding an incident at § 87(2)(b) in Brooklyn. PO McManus placed one individual under arrest in regards (Enc. 17a – 17d).

CCRB Statement

PO Keller was interviewed at the CCRB on July 12, 2013 (Enc. 18a – 18e). § 87(2)(g)

PO Keller and PO Kehoe arrived together as the other officers were still dispersing the crowd. PO Keller overheard portions of Sgt. Moreno's conversation with an unidentified male who complained of an individual being held on the first floor against his will, though PO Keller was unable to provide additional information. The officers did not damage the stone saddle or the camera mount. The light in the vestibule remained off for the duration of this incident.

Once § 87(2)(b) opened the door, Sgt. Moreno, who was standing closest to the door, engaged in a less than minute long conversation with § 87(2)(b). Slightly behind Sgt. Moreno and on both sides of him, were standing PO Keller and PO Kehoe. PO McManus was slightly behind PO Keller and PO Kehoe. PO Keller was unable to recall any additional officers at the location at this time.

§ 87(2)(b) pushed Sgt. Moreno, causing him to take more than three steps backward, but he remained on his feet and did not make contact with a wall. § 87(2)(b) attempted to close the door, but PO Kehoe and PO Keller grabbed § 87(2)(b) and entered the vestibule with him before he was able to close the door. PO Kehoe and PO Keller were positioned on § 87(2)(b)'s right side, attempting to secure his right arm, while PO McManus was on his left side. § 87(2)(b) was bent over with his arms tightly pressed against his torso, preventing the officers from rear cuffing him. When the officers did loosen an arm, § 87(2)(b) thrashed his upper body and was successful in shaking PO Kehoe and PO Keller off of him. PO Keller grabbed his flashlight to shine out the struggle. At no point did he or any other officer strike § 87(2)(b) with a flashlight, asp, baton, nightstick or other blunt object.

PO Keller did strike § 87(2)(b) on the left side of his ribs with a closed fist one time, which was unsuccessful in gaining compliance. PO Keller did not recall seeing an officer punch § 87(2)(b) in the face, neck or head area. The officers continually yelled at § 87(2)(b) to stop resisting. No officer yelled, "Faggot, fag, homo, or fucking asshole." PO Keller returned to the stationhouse with § 87(2)(b) and did not recall observing injuries on him.

Witness Officer: PO BRIAN KEHOE

- PO Kehoe was § 87(2)(b) old at the time of this incident. He is a § 87(2)(b) white man with brown hair and brown eyes.
- PO Kehoe worked from 7:30 p.m. on January 12, 2013, to 4:05 a.m. on January 13, 2013 as an Impact Auto Unit in marked van 8556. He was working in uniform. At the beginning of the night, PO Kehoe was assigned to work with PO Romano, but his partner was switched later in the night and he did not note it in his memo book.

Memo Book

On January 13, 2013, at 3 a.m., Sgt. Moreno requested an additional unit to § 87(2)(b) in Brooklyn. PO McManus put one individual under arrest at the location (Enc. 19a – 19b).

CCRB Statement

PO Kehoe was interviewed at the CCRB on August 16, 2013 (Enc. 20a – 20e). § 87(2)(g)

At the time of this incident, an unidentified male and female civilian refused to leave the location and were calling the owner of the apartment in an attempt to get them to close down the party for the officers. When prompted, PO Kehoe acknowledged that the owner of the apartment was holding an individual against their will.

The lights in the vestibule remained off for the duration of this incident. As the officers knocked on the door, PO Kehoe did not see any officer damage the door and did not observe property damage result from Sgt. Moreno turning the camera. Within fifteen seconds of § 87(2)(b) opening the door, he pushed Sgt. Moreno and attempted to shut the door on the officers. Sgt. Moreno remained standing and did not make contact with any wall or barrier.

PO Kehoe grabbed § 87(2)(b)'s right arm and PO Keller grabbed § 87(2)(b)'s left arm. PO Kehoe could not see where PO McManus or Sgt. Moreno were situated in the small vestibule. § 87(2)(b) resisted arrest by grabbing onto the stairwell railing and pushing off of it, causing the officers to jolt backward into a wall. § 87(2)(b) bear-hugged a bannister and would not surrender his arms to the officers. In an effort to handcuff § 87(2)(b) PO Kehoe pulled on his arms to manipulate them behind his back; however, due to the lighting and chaotic atmosphere, he did not see what type of force the officers were using.

PO Kehoe did not see any officer punch § 87(2)(b) in the face, head, or back and did not do so himself. PO Kehoe did not see any officer use an asp, nightstick, baton, flashlight or blunt object to strike § 87(2)(b) and he did not do so himself. PO Kehoe did not state, or hear any officer state, “Fag, homo, fuck you, or fucking asshole,” and recalled the officers mainly yelling “stop resisting!” and “put your hands behind your back!” PO Kehoe believed that PO McManus was minimally involved, as he was further away from § 87(2)(b) than the other officers during the apprehension phase.

Within three minutes, § 87(2)(b) was fully handcuffed and escorted out of the vestibule. PO Kehoe remained at § 87(2)(b) to disperse the party and did not inspect § 87(2)(b) for injuries. Sgt. Moreno, PO Kehoe, and possibly one to two other officers who PO Kehoe could not recall by name remained in the building and instructed civilians to leave. PO Kehoe entered the § 87(2)(b) floor apartment, as the door was wide open and he could see numerous people inside. He walked around the apartment and told everyone to leave. PO Kehoe did not conduct a search of any kind, including cabinets or drawers. For the majority of the interaction inside of the apartment, PO Kehoe spoke to the DJ who was disassembling his equipment. PO Kehoe did not observe any officer damage any audio equipment and did not do so himself.

Medical Records

§ 87(2)(a) PHL § 18(6)

§ 87(2)(a) PHL § 18(6)

NYPD Documents

SPRINT Report

SPRINT Report § 87(2)(b) was generated as a result of this incident (Enc. 21a – 21c). At 3:17 a.m., a Patrol Sergeant arrived at § 87(2)(b) in Brooklyn, and made a crime arrest. He then requested an ambulance to the location but changed the request to have the ambulance respond to the 77th Precinct.

Medical Treatment of Prisoner Report and Command Log

A Medical Treatment of Prisoner Report was generated as a result of § 87(2)(b)'s injuries and the following medical treatment (Enc. 22a). The report noted that § 87(2)(b) suffered cuts to his face because he was previously resisting arrest from PO McManus. He was transferred to § 87(2)(b). PO McManus logged § 87(2)(b) into the 77th Precinct Command Log at 3:23 a.m. and listed his condition as “apparently normal” (Enc. 23a).

Roll Call

According to the January 12, 2013, tour 3 77th Precinct Roll Call, Sgt. Moreno was working as the Impact Sergeant. PO McManus, PO Kehoe and PO Keller were both working on the Impact Team. The roll call lists PO Kehoe and PO Phillip Romano as being assigned to RMP 8556; however, during his CCRB interview, PO Kehoe indicated that PO Romano was not present for this incident, as his assignment was changed during his tour (Enc. 24a – 24c).

Other NYPD Documents

Despite the large party at § 87(2)(b) the 77th Precinct Criminal Summons Log, the 77th Precinct Stop, Question, and Frisk Log, and the 77th Precinct Booking and Arraignment Disposition System (BADS) Arrest Index, indicate that, aside from § 87(2)(b) no individual attending the party was stopped, summonsed or arrested (Enc. 26a – 26e).

Arrest for Incident and Disposition

- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Status of Civil Proceedings

- § 87(2)(b) filed a Notice of Claim with the City of New York on § 87(2)(b), claiming physical and emotional injuries and seeking an undisclosed amount of money as redress (Enc. 27a – 27e).

[§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Civilian CCRB History

- This is the second complaint involving § 87(2)(b) (Enc. 3A). § 87(2)(b)

Subject Officers CCRB History

- PO McManus and Sgt. Moreno have been members of the service for one and nine years, respectively, and there are no substantiated CCRB allegations against them (Enc. 2a – 2b).

Conclusion

Identification of Subject Officers

Sgt. Moreno was initially identified § 87(2)(b) however, during his CCRB statement he confirmed the extent of his interaction with § 87(2)(b). Sgt. Moreno identified himself as the officer who turned the camera away from the stoop, allegedly resulting in property damage, and also identified himself as the highest ranking officer on scene, and the one who made the decision to enter the 2nd story apartment § 87(2)(g).

PO McManus was identified by § 87(2)(b) who obtained his name from the arrest paperwork and accurately described him as a 6'0" tall, muscular white male in his 30s. § 87(2)(b) identified PO McManus as the officer who punched him and called him a "fucking asshole." During his CCRB statement, PO McManus confirmed that he punched § 87(2)(b) § 87(2)(g).

§ 87(2)(b) alleged that more than two officers, who he could not see, punched and struck him numerous times and stated, "Faggot, homo and fuck you" to him. All officers who interacted with § 87(2)(b) in the vestibule were questioned and denied using the aforementioned language or the extent of the force alleged by § 87(2)(b) § 87(2)(g).

Investigative Findings and Recommendations

Allegations Not Pleaded

§ 87(2)(b) noted that he felt strikes to his back that were sharper and harder than the others, leading him to believe that he was being struck with a blunt object. § 87(2)(b) did not see an officer with a blunt object and no officer admitted to using an object to strike § 87(2)(b) § 87(2)(g).

§ 87(2)(b) alleged that officers broke the stone saddle to his door; however, this is not § 87(2)(b)'s personal property as it belongs to his apartment building. § 87(2)(b) stated that he noticed that a primary mixing board, which is a piece of recording equipment, was damaged after the officers left. § 87(2)(g).

§ 87(2)(b) alleged that officers who he could not see stated, "Faggot, homo and fuck you" to him. § 87(2)(g).

Allegation A – Abuse of Authority: Sgt. Juan Moreno damaged § 87(2)(b)'s property.

It is undisputed that Sgt. Moreno turned the camera so that it was not facing the stoop. In doing so, § 87(2)(b) alleged that Sgt. Moreno damaged the mount and the wiring, causing the camera to stop recording. Sgt. Moreno and all of the officers interviewed denied observing damaged property as a result of rotating the camera.

Once the exterior camera was rotated away from the stoop, the footage continued to record a wall

for approximately 30 seconds, showing that the video footage was not immediately corrupted. The video footage obtained from the interior cameras capture a recording studio with a flickering television. On the television is the same wall image from the exterior camera after it was rotated away from the stoop. The interior video footage is over 11 minutes long and depicts the exterior camera running for the duration of the video.

§ 87(2)(g)

it is recommended that **Allegation A** be closed as **unfounded**.

Allegation B – Force: Officers used physical force against § 87(2)(b)

Allegation E – Force: PO Michael McManus used physical force against § 87(2)(b)

§ 87(2)(b) alleged that he was punched in the face two times by an officer who he did not see. He was subsequently bent over face-down when he felt punches connect to the back of his neck, head, and back. § 87(2)(b) identified PO McManus as one of the officers who continually punched him in the face. § 87(2)(b) denied resisting arrest and denied pushing Sgt. Moreno. § 87(2)(b) observed this incident from further away on the top of the stairs and confirmed that PO McManus acknowledged punching § 87(2)(b) one time on the left side of his face, and elbowing him in the ribs to overcome his resistance. PO Keller acknowledged punching § 87(2)(b) in the left ribs one time to get control of his flailing limbs. Sgt. Moreno and PO Kehoe denied striking § 87(2)(b) but were consistent in chronicling his resistance. § 87(2)(b) received nine stitches on his upper lip as a result.

§ 87(2)(g)

§ 87(2)(g)

it is recommended that **Allegation B** be closed as **officers unidentified**. § 87(2)(g)

It is therefore recommended that **Allegation E** be closed as **unsubstantiated**.

Allegation C – Offensive Language: Officers made remarks to § 87(2)(b) based upon the perceived sexual orientation of § 87(2)(b)

As § 87(2)(b) was bent over, he heard more than one male voice make statements to the effect of, “Faggot, homo and fuck you.” § 87(2)(b) could not see which officer made these statements. § 87(2)(b) who was standing at the top of a stairwell looking down into a dark vestibule, could not see which officers were speaking, though he confirmed he heard male voices state, “Fag, homo, fucking faggot, and stop resisting.” All of the officers interviewed denied making these statements, § 87(2)(g)

it is recommended that **Allegation C** be closed as **officers unidentified**.

Allegation D – Offensive Language: PO Michael McManus made remarks to § 87(2)(b) based upon the perceived sexual orientation of § 87(2)(b)

Allegation F – Discourtesy: PO Michael McManus spoke discourteously to § 87(2)(b)

§ 87(2)(b) alleged that while walking him to the transport vehicle, PO McManus called him a “fucking asshole.” Although § 87(2)(b) did not see which officers used anti-gay slurs toward him, § 87(2)(b) alleged that he heard PO McManus use the phrases, “Fag, homo, and fucking faggot.” PO

McManus denied using the aforementioned language, and all officers interviewed denied hearing him make these statements. In regards to the discourteous language allegation, a cell phone video with audio was provided which shows § 87(2)(b) being led to an RMP by an officer who is not PO McManus.

§ 87(2)(g)

It is therefore recommended that **Allegations D and F** be closed as **unsubstantiated**.

Allegation G – Abuse of Authority: Sgt. Juan Moreno authorized the entry into § 87(2)(b) in Brooklyn.

It is undisputed that Sgt. Moreno and police officers entered the § apartment of § after arresting the owner of the apartment, § 87(2)(b). It is also undisputed that the majority of the 100-person party was still present inside of the apartment at the time of the officers' entry. The officers unanimously stated that they entered the apartment to get the 100 civilians out of the location, and their intent was not to affect an arrest, conduct a search, or collect evidence. The civilians did not complain of a search occurring. § 87(2)(g)

The emergency doctrine permits officers to enter a private dwelling without a warrant, if the primary factors persist, People v. Dallas, 832 N.Y.S.2d 893 (2007) (Enc. AA – AB):

1. The police must have reasonable grounds to believe that there is an emergency at hand and an immediate need for their assistance for the protection of life or property.
2. The search must not be primarily motivated by intent to arrest and seize evidence.
3. There must be some reasonable basis, approximating probable cause, to associate the emergency with the area or place to be searched.

§ 87(2)(g)

§

§ 87(2)(g)

It is therefore recommended that **Allegation G** be closed as **exonerated**.

Team: 2

Investigator:	_____	<u>Diana P. Murray</u>	_____
	Signature	Print	Date

Supervisor:	_____	_____	_____
	Title/Signature	Print	Date

Reviewer:	_____	_____	_____
	Title/Signature	Print	Date

Reviewer:	_____	_____	_____
	Title/Signature	Print	Date